

Written Testimony of Howard Wiener

My name is Howard Wiener and I live in Philadelphia. I have lived here for over 40 years (despite my NY accent) and am well-versed in issues affecting Philadelphia, both at the local and national levels.

I retired in 2017 as an Assistant US Attorney for the District of New Jersey, having spent over 30 years in that position.

I speak to you as a private citizen.

I oppose partisan gerrymandering, regardless of whether it is done by Democrats or Republicans.

At the outset, I will note that Philadelphia has enough population to form about two Congressional districts being drawn for a population of 1.5 million population vs. approximately 765,000 people per Congressional district.

I ask that you keep Philadelphia's representation in Congress as undivided as possible, that is, resting with two Congresspersons, so that its citizens are well represented in Congress.

This will enable Philadelphians to know their member of Congress. Among other things, it also will enable their member of Congress to work as a partner with municipal government in securing funds to solve urban problems.

Such problems include violence prevention, job creation, tourism, rail, parks, libraries, bridges, after school programs, police, post-conviction job training programs, job training in skilled labor and trades, investment in education - to name a few areas of need.

Since I'm a lawyer, I will focus on the legal aspects of the State Legislature's ("the Legislature") job.

First, I believe the polestar for the Legislature's job is the Pennsylvania Supreme Court's ("PA Supreme Court" or "the Court") 2018 decision in the League of Women Voters case ("LWV"). As you know, that case dealt with Congressional redistricting.

The ruling is based on a Pennsylvania Constitutional provision, the Free and Equal Elections Clause (FEEC).

In particular, the Court said on page 118 of LWC that the FEEC "should be given the broadest interpretation, one which governs all aspects of the electoral process"

Essentially, the Court forbid the Legislature from acting in a clearly partisan manner in creating a Congressional map.

That ruling adopted objective neutral criteria. It stated that the Constitution requires districts to be compact and contiguous, with minimal division of political subdivisions unless necessary to ensure equal population. (page 125 and other pp.)

The exact formulation of the Court's criteria is set forth on page 123 of its opinion and its accompanying Order. It is clear and concise.

The Court's Order included the following language, from which I quote in relevant part:

Any remedial congressional districting plan, whether enacted by the General Assembly [or] Governor . . . , should consist of:

congressional districts composed of compact and contiguous territory; as nearly equal in population as practicable; and which do not divide any county, city, incorporated town, borough, township, or ward, except where necessary to ensure equality of population.

We urge the Legislature to use and apply this standard in this redistricting cycle.

Significantly, the Court said: any other factors are wholly subordinate to these neutral criteria (page 123).

In particular, that includes "communities of interest."

If these primary neutral criteria are utilized, then there cannot possibly be partisan INTENT in the creation of the map. And the map that results likely will not result in a partisan EFFECT. (122)

The best way to eliminate the possibility of partisan intent is to explicitly adopt and apply these neutral criteria.

The map the Supreme Court approved in 2018 followed and implemented those neutral, constitutionally mandated criteria.

The Legislature should carefully study that map so that it can see what type of map the Supreme Court is likely to approve.

Judicial Scrutiny

Such objective neutral criteria also provide a judicially manageable standard.

It is self-evident that the map the Legislature devises can and likely will be contested in the PA Supreme Court.

The Court made it clear that it will intervene in the redistricting process whenever that process goes off the rails. (pages 132-35 – the Court talks about its power to step in to the process when the Legislature cannot or will not act)

It is in the interest of the Legislature and the public for the Legislature's map to pass judicial scrutiny.

The best way to avoid an adverse judicial ruling is for the Legislature to BOTH

(a) explicitly adopt the Supreme Court's criteria into the report it eventually publishes along with its Congressional map, and

(b) explicitly apply those criteria.

That way, the Court will be able to clearly see what the Legislature has done.

The Legislature's process then will be transparent.

The Court will want to know the basis for the Legislature's map, that is, both the criteria and methodology it utilized and whether and how it applied that methodology.

If these steps are taken, then it will be much easier for you, the members of the Legislature, to defend your map before the Court.

And the Court will more likely approve your map if it views that map as based on clear, judicially manageable standards that were implemented in a nonpartisan fashion.

This applies equally to Republicans and Democrats.

If Republicans like the map that is drawn, it is in their interest that the map be judicially approved.

If they do NOT like it, then it is in their interest that they be able to successfully contest that map. They can do so by arguing that neutral objective criteria either were not adopted in the map drawing process, or that they may have been adopted, but were not followed.

The same goes for Democrats.

The bottom line: we respectfully ask you to ask yourselves the following:

What is the point in devoting hours of effort to creating a map, only to have the PA Supreme Court throw it out?

Thank you for your attention and for giving me the opportunity to speak.